

25SMCV01900 25SMCV01900

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25SMCV01900 Hearing Date: August 18, 2026 Dept: N

TENTATIVE RULING

Defendants Obaida Batal, M.D., and Batal Medical, Inc.'s Demurrer to Second Amended Complaint is **OVERRULED**.

The Amended Second Amended Complaint filed on March 16, 2026 is deemed the operative pleading in this action.

Defendants Obaida Batal, M.D., and Batal Medical, Inc. shall file and serve an answer to Plaintiff Sonya Daniels' Amended Second Amended Complaint within ten (10) days of entry of this order. (Cal. Rules of Court, rule 3.1320(j).)

Defendants Obaida Batal, M.D., and Batal Medical, Inc. to give notice.

First Cause of Action: Violations of the Confidentiality of Medical Information Act (Civil Code section 56 et seq.)

The California Confidentiality of Medical Information Act (CMIA), codified at Civil Code section 56.35, provides a cause of action for "a patient whose medical information has been used or disclosed . . . and who has sustained economic loss or personal injury therefrom." In the first cause of action, Plaintiff alleges that Defendants sent a text message on September 19, 2022 containing Plaintiff's preoperative medical video, which depicted Plaintiff "basically without clothing," without her consent. (SAC, p. 2.) Plaintiff further alleges that in October 2023, Defendants contacted Plaintiff, threatening to post the video online, and between September 2022 and November 2024, Defendants sent the video to other unauthorized third parties, relaying information from Plaintiff's patient file to third party Robert Hashemiyoon without consent, and made jokes and comments about Plaintiff while sharing information in Plaintiff's file with unauthorized third parties. (Ibid.) Defendants also allegedly made several phone calls threatening to post Plaintiff's information online, they shared information with unauthorized third party Marcus Cato, and they left a voicemail on October 6, 2023, making derogatory remarks using Plaintiff's confidential medical information. (SAC, p. 3.) Plaintiff further alleges that the personal information was sent from her phone to Defendants' phone while she was sedated. (Ibid.) Plaintiff alleges that she suffered emotional distress and damages as a result of this conduct. (SAC, p. 5.) In an "Amended" version of the SAC, Plaintiff further alleges that the video was posted on Defendants' Facebook page without her consent, tagging Plaintiff, and information shared included her driver's license number, social security number, medical videos, and results; offensive comments were made to third parties Elyssa Geinfeld, Jessica Gil, and Robert Hashemiyoon; and third party Marcus Cato received a copy of the video. (Am. SAC, pp. 2-3.)

The Court finds that Plaintiff has sufficiently stated a claim for violation of the California Confidentiality of Medical Information Act. Notably, if Defendants had sufficiently met and conferred with Plaintiff, this dispute could have avoided court intervention because Plaintiff proceeded to address the points in Defendants' demurrer in the Amended SAC she filed on March 16, 2026. Rather than try to resolve the issues, Defendants opted to file this demurrer three days later, perhaps because they

had already drafted it and had no intention of resolving the issues with Plaintiff informally. Again, the Court will not reward this conduct, and it opts to avoid entertaining an unnecessary third demurrer where the issues are addressed in the amended filing. Accordingly, Defendants Obaida Batal, M.D., and Batal Medical, Inc.'s Demurrer to Second Amended Complaint is OVERRULED. The Amended Second Amended Complaint filed on March 16, 2026 is deemed the operative pleading in this action. Defendants Obaida Batal, M.D., and Batal Medical, Inc. shall file and serve an answer to Plaintiff Sonya Daniels' Amended Second Amended Complaint within ten (10) days of entry of this order. (Cal. Rules of Court, rule 3.1320(j).)